

Court No. - 21

Case :- WRIT - C No. - 3279 of 2023

Petitioner :- Brij Lal Gupta

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Devashish Tripathi, Brij Gopal

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Counsel for the respondent-Electricity Department seeks time to obtain instruction.

List as fresh on 14th February, 2023.

When the matter is listed next, the name of Shri Pankaj Srivastava shall be shown as counsel for the respondent No.5.

In the meantime, the attached property will not be auctioned.

Order Date :- 31.1.2023

D. Tamang

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Court No. - 40

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Petitioner :- Brij Lal Gupta

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Devashish Tripathi, Brij Gopal

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari, Pankaj Srivastava

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard learned counsel for the petitioner and Shri Pankaj Srivastava, learned counsel appears for the Power Corporation.

This writ petition has been preferred inter alia for the following reliefs:

"(1) Issue a writ, order or direction in the nature of certiorari quashing the impugned order dated 18.08.2022 passed by respondent no. 3 S.D.M. Meja Prayagraj and as well as order 08.12.2022 passed by respondent no. 5 Executive Engineer, Purvanchal Vidyut, Vitran Nigam, Limited Meja, Prayagraj against the petitioner.

2. Issue a writ order or direction in the nature of mandamus directing to the respondents not to adopt any coercive method against the petitioner and as well as not attach to any action sale of any property movable & immovable (Gata No. 711 area 0.0110 Hec. and 713 Kha area 0.0170 Hec.) in pursuance of the aforesaid orders."

Factual aspect of the matter is that petitioner is owner of the property in dispute. Initially electricity connection No. 906/1503/007035 was accorded to the petitioner on 14.04.1982 at his residence situated at village- Sirsa, P.S. Meja, District Prayagraj. It is claimed against the said connection he continuously deposited regular electricity bill till the year 1995 and thereafter, he sold the property in favour of Smt. Suman Devi in the year 1995. However, Smt. Suman Devi took the new connection in the year 2006. On 19.07.2022, a Recovery Certificate was issued by S.D.M., Meja to the petitioner and in furtherance S.D.M., Meja vide order dated 18.08.2022 issued direction for entry of R.C. in revenue record. It transpires that petitioner challenged the said recovery certificate before the coordinate Bench of this Court in Writ-C No. 24287 of 2022 and vide order dated 06.09.2022 the coordinate Bench has passed the order which is extracted below:-

"In view of above, the petitioner may file a fresh representation along with the

copy of this order within the period of two weeks from today raising all his grievances including those in the representation dated 28.07.2022. On such representation being filed, respondent no.5 shall be under obligation to pass a reasoned and speaking order in accordance with law dealing with all points of objection raised by the petitioner preferably within a period of four weeks from the date of receipt of the representation.

For a period of two months from today or till the final decision is taken by respondent no.5, whichever is earlier, the recovery certificate dated 19.07.2022 shall not be pressed into service.

However, in case, the petitioner fails to file the representation within the time given above, it would be open for the respondent no.5 to proceed in accordance with law."

In response to the aforesaid order, Executive Engineer, electricity department vide order dated 08.12.2022 has informed the petitioner to deposit modified bill so that S.D.M., Meja may be approached for withdrawal of recovery certificate. Aggrieved with the same petitioner has filed the present petition.

In this background, learned counsel for the petitioner states that the impugned notice for a period from year 1995 to 2006 is arbitrary as the property in question has already been sold to Smt. Suman Devi in the year 1995 who took new connection in the year 2006.

In this backdrop, the Court put a pointed query to the learned counsel for the petitioner whether at any point of time petitioner applied for disconnection of the electricity connection, prior to selling the property in favour of Smt. Suman Devi. He fairly conceded that at no point of time, it is being informed to the Electricity Department that the property has already been sold in favour of Smt. Suman Devi. He submits that on the technical flaws, the huge liability cannot be fastened on the petitioner.

Learned Standing counsel on instructions submits that admittedly the connection which was accorded in favour of the petitioner on 14.04.1982 and the same was continued till 20.02.2006 and consequently, Smt. Suman Devi wife of Gorakh Nath had applied for new connection which was accorded on 20.02.2006. It is admitted situation that since 1995 to 2006 the amount in question with regard to regular bill has not been deposited. In absence of permanent disconnection the liability is to be fastened only to the owner of the property in question.

Once the Court has declined to interfere in the disputed question of fact, confronted with the situation, learned counsel for the petitioner state that the reprieve may be extended in view of the provisions contained under Section 6.14 of the U.P. Electricity Supply code, 2005.

Learned Standing counsel has no objection if the dispute in question is settled in accordance with law.

In the interest of justice, no useful purpose would be served in keeping the writ petition pending, with the consent of parties, the writ petition is **disposed of** directing the petitioner to file a fresh application / representation before the competent authority, and in case any such application / representation is moved within two weeks' from today, we hope and trust that easy instalments shall be fixed as per the provisions contained under Section 6.14 of the U.P. Electricity Supply code, 2005.

Order Date :- 14.2.2023

Bhanu